Summary: Content Moderation by AI under the EU AI Act & DSA

1. The Legal Status and Freedom of Expression of AI

The paper explores whether AI possesses independent freedom of expression or if this right belongs solely to the tech companies operating them. This is central to determining if AI can be viewed as an independent legal actor in social media content creation and moderation.

Core Perspectives on AI Personality

- **AI as an Independent Subject:** Academic literature offers varying criteria for recognizing AI's freedom of expression. Simple criteria require the AI's output to be indeterminate and unpredictable. Tim Wu suggests distinct personality requires (1) capability for conceptual thinking and (2) the ability to express formed opinions. More abstract criteria suggest evaluating if the AI exhibits "socially complex functionality" pushing human autonomy boundaries or possesses adequate social status. Legal personality remains a discretionary, practical decision for legislators.
- **The Underlying Human Subject:** Conversely, arguments state AI fundamentally requires human input. Therefore, rights and liabilities must map to the natural or legal persons behind it—the programmer, operator, or user.

Attribution in Social Media

For proprietary AI models utilized by social media platforms (e.g., Meta's Llama), the roles of programmer, operator, and user collapse into a single entity. Because the platform drafts and parameterizes the moderation policies, the AI's output is legally attributed directly to the service provider.

2. Regulatory Framework: The Digital Services Act (DSA)

The DSA (Regulation (EU) 2022/2065) primarily regulates intermediary service providers to ensure accountability, algorithmic transparency, and effective remedy mechanisms.

Defining Content Moderation

The paper highlights a divergence between scholarly and statutory definitions:

- **Scientific Definition:** Encompasses any action by providers restricting user content (automated or human) that raises fundamental rights issues, regardless of the content's objective illegality, usually driven by the platform's economic/social agendas or liability avoidance.
- **DSA Statutory Definition (Article 3):** Focuses strictly on activities detecting, identifying, and addressing illegal content or information incompatible with terms and conditions (e.g., demotion, demonetization, account suspension, removal).

Methodological Note: The authors explicitly exclude *non-interference detection* from their study's scope, arguing that pure detection without action does not infringe upon a user's fundamental freedom of expression.

The DSA's 5 Core Safeguards

To counterbalance automated decision-making and safeguard fundamental rights, the DSA mandates five legal tools:

1. **Clear Terms & Conditions (Article 14):** Providers must outline their moderation tools (including algorithmic decision-making and human review) in clear, plain, and machine-readable language.
2. **Transparency Reporting (Articles 15, 24, 42):** Applies a cumulative three-tier structure. Very Large Online Platforms (VLOPs) must disclose qualitative descriptions of automated tools, their exact purpose, operational accuracy indicators, and error rates.
3. **Statement of Reasons (Article 17):** Hosting providers must issue judicial-style justifications when imposing restrictions. Mandatory elements include the facts, legal/contractual basis, information on whether AI tools were used, and available appeal options.
4. **Internal Complaint-Handling System (Article 20):** A free, electronic system available for at least six months managed by qualified staff. The paper notes that the statutory deadline "without undue delay" creates potential legal uncertainty similar to past E-Commerce Directive ambiguities.
5. **Out-of-Court Dispute Settlement (Article 21):** Users can access independent expert panels across Member States, with costs significantly subsidized by the platforms. This standardizes alternative dispute resolutions across the EU, expanding beyond past fragmented models like Germany’s NetzDG.

3. Regulatory Framework: The EU AI Act

The AI Act adopts a risk-based approach, sorting AI applications into four risk tiers (unacceptable, high, systemic, and minimal). Content moderation tools typically fluctuate between **unacceptable, high, or limited/minimal risk** categories.

Risk Classification of Moderation Systems

- **Unacceptable Risk (Prohibited):** AI systems that intentionally or systematically censor lawful content to manipulate public opinion or exploit vulnerabilities.
- **High-Risk:** Content moderation systems deployed by VLOPs (e.g., automated hate speech, extremism, or misinformation filters) due to their profound systemic impact on freedom of expression and non-discrimination.
- **Systemic / Minimal / Limited Risk:** Basic automated tools like spam filters, language filters, or standard copyright detectors.

High-Risk Legal Mandates

- **Data Management (Article 10):** Datasets training high-risk models must be high-quality, representative, and completely free from bias to avoid disproportionately flagging marginalized communities or regional dialects.
- **Human Supervision (Article 14):** AI systems must allow for active human oversight to reverse false positives/negatives, ensuring automated speed is balanced with human contextual awareness.
- **Transparency Obligations (Article 50):** Requires explicit disclosure to users when they interact with AI, when biometric data detects emotions/social categories, or when AI generates/manipulates content (e.g., deepfakes).

4. Empirical Realities and Technical Limitations of AI Moderation

While major tech platforms deploy massive automated operations—such as Meta proactively flagging over 99% of terrorist content via AI —the paper points to persistent technical boundaries:

The "Black Box" & Transparency Paradox

AI architectures are inherently complex and opaque ("black box effect"). This creates a *transparency paradox*: revealing raw source codes or complex machine learning algorithms does not inform the user; instead, it causes information overload, misleads non-technical users, and risks compromising corporate trade secrets and proprietary know-how.

Notable Failures in Semantic Context

AI remains fundamentally incapable of parsing complex human paradigms, including:

- **Evolution of Language:** Models trained on static, outdated datasets systematically fail to adapt to rapidly shifting online slang and colloquialisms.

- **Cultural and Tonal Nuance:** Satire, irony, and regional cultural contexts are frequently misclassified.
- **Historical/Educational Significance:** Prominent operational failures include Facebook's AI deleting the iconic, historic *Napalm Girl* photo strictly due to its nudity guidelines , and YouTube over-filtering legitimate educational/news broadcasts during the COVID-19 pandemic when human oversight was limited.

5. Conclusion: The Necessity of Hybrid Systems

Ultimately, the paper concludes that the full spectrum of content moderation cannot be safely abandoned entirely to independent AI models. Because AI cannot legally or structurally assume individual liability or navigate semantic complexities, the future of platform governance relies on a tight **hybrid framework**. Automated algorithms must provide scalable data screening, while mandated human oversight remains legally indispensable to evaluate fundamental rights, situational context, and complex exceptions. Together, the DSA and AI Act act as complementary mechanisms designed to push platforms to refine this human-in-the-loop ecosystem.